



SPONSOR: Rep. Ross Levin & Sen. Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 137

AN ACT TO AMEND TITLE 29 OF THE DELAWARE CODE RELATING TO MERIT EMPLOYEE RELATIONS BOARD AND THE ADMINISTRATION OF THE MERIT SYSTEM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 5955, Title 29 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 5955. Federal Fair Labor Standards Act; application to state personnel practices and merit system rules.

4 Notwithstanding any other provision of state law, the federal Fair Labor Standards Act, Chapter 8 of Title 29 of
5 the United States Code, shall supersede state law relating to state personnel practices and shall supersede the rules adopted
6 by the Merit Employee Relations Board pursuant to this chapter, but only to the extent such state law or merit rules are in
7 conflict with the Fair Labor Standards Act [29 U.S.C. § 201 et seq.]. This supersession of state law and the merit system
8 rules shall continue in effect only so long as, and only to the extent that, the provisions of the federal Fair Labor Standards
9 Act [29 U.S.C. ~~201~~ § 201 et seq.], by their own terms or by judicial interpretation, are deemed to apply to state government
10 personnel practices. To the extent necessary for state compliance with the Fair Labor Standards Act, the Secretary ~~shall~~
11 ~~have~~ has the authority to implement this section, including, but not limited to, the authority to determine where conflicts
12 exist between state law or merit rules and the federal act, and to resolve such conflicts by appropriate rulings and
13 regulations. The Secretary's determination regarding the Fair Labor Standards Act as applied to state personnel may not be
14 appealed to the Merit Employee Relations Board.

SYNOPSIS

This Act clarifies that the Merit Employee Relations Board does not have jurisdiction to interpret or apply the Fair Labor Standards Act. Instead, disputes concerning the Secretary of the Department of Human Resources' interpretation of this federal law as applied to state personnel must be determined as outlined in Title 29 of the United States Code.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.